

The board in T.2091/18, however, disagreed with this distinction. In its view, there was no support in the RPBA for considering that a deletion of claims did not amend the appeal case if it did not alter the factual situation (T.995/18, T.981/17, T.1792/19, T.1857/19) or require (thoroughly) re-evaluating the matters at issue (T.995/18, T.981/17). Whether an appeal case had been amended within the meaning of Art. 13(2) RPBA 2020 had to be divorced from considerations as to the impact on how the proceedings would progress.

(i) Deletions held not to be an amendment

In T.1480/16 appellant I (patent proprietor) submitted an auxiliary request 5 at the oral proceedings. This request was based on auxiliary request 3, filed with the reply, with the only difference being the deletion of the method claims. The board did not consider this deletion to be an amendment to the appeal case since it did **not** result in **any change to the factual situation**. In particular, it did not necessitate any new discussion on novelty or inventive step. As for the insertion of the term "gleichzeitig" [at the same time] into feature I') of claim 1, contested by appellant II, the board was of the opinion that this resulted in explicitly setting out what the opposition division had considered to be implicitly implemented in feature I) of claim 1 (which it had maintained) and therefore to justify a finding of inventive step. Appellant II had disputed this finding in its appeal. Appellant I had already responded to this by filing auxiliary request 3 as a precautionary measure with its reply to the appeal and adding the term "gleichzeitig" to claim 1. Similarly, it had already addressed appellant II's objections regarding clarity and impermissible intermediate generalisation in its written reply, so there was no amended case in this respect either. However, see also T.2222/15 and T.1569/17, in which the boards distinguished the cases before them from T.1480/16; the board in T.1569/17 observed, in particular, that more thorough and nuanced arguments had been submitted for the two claim categories at issue in T.1480/16.

In T.995/18 auxiliary request 1 filed at the oral proceedings was based on the main request at issue in the contested decision and filed with the reply to the appeal; the only difference was that a **dependent claim** had been deleted. The board did not consider this deletion to amount to an amendment to the appeal case since it did not result in any change to the factual situation (see T.1480/16) of the kind arising where a deletion entailed thoroughly re-evaluating the matters at issue. Here, abandoning the dependent claim had merely eliminated one point of dispute from the proceedings; it did not put the other claims in a new light or otherwise affect the proprietor's appeal case. As the board explained, such abandoning of a claim was comparable to an opponent's abandoning individual objections or lines of attack, the admissibility of which was rightly not regarded as a matter for the board's discretion either (confirmed in T.914/18). See also T.2638/16, in which the same principles were applied to a deletion of an alternative **embodiment** that likewise did not entail completely revisiting the matters at issue.

In T.884/18 the new main request (filed after the summons to oral proceedings) was based on the main request of the impugned decision, but wherein **dependent claim** 8 had been deleted in order to restore the claimed priority. The board underlined that the deletion was of no consequence for the case of either party, which was directed primarily at claim 1 as granted. The board was of the opinion that it followed that this amendment did not

represent a modification of the **factual and legal framework** of the debate to date. The board concluded that it did not represent an amendment to the respondent's (proprietor's) case within the meaning of Art. 13(2) RPBA 2020. See also T 565/16 in which the board stated that the deletion of **dependent claims** did not constitute an amendment to a party's appeal case in the sense of Art. 13(1) EPC.

In T 1857/19, where all **apparatus claims** had been deleted from the new main request filed during the oral proceedings, the board noted that the remaining claim category (method claims) had been the principal subject of the discussion. The circumstances of the case were therefore similar to those in T 1480/16 and T 995/18, in which the deletion of the claims had not changed the **factual and legal framework** and had thus not been considered an amendment to the party's appeal case.

(ii) Deletions held to be an amendment

In T 482/19 the auxiliary requests at issue (filed after summons to oral proceedings) were based on requests filed during first-instance opposition proceedings, except that the product claims had been deleted. The board distinguished the case from T 1480/16 (decided by the same board). In the case in hand, the method claim was more limited than the product claim. The limiting features had not played any role in the appeal proceedings, as the submissions of the parties were mainly related to the product claims that were present in all requests on file. However, if the board were to admit these features, they would need to be considered in particular in relation to the issue of inventive step and this would result in a **substantial and unexpected change in the discussion** at the oral proceedings. Therefore the filing of the auxiliary requests at issue constituted an amendment of the patentee's case within the meaning of Art. 13 RPBA 2020. Since the appellant did not demonstrate any exceptional circumstances, the board did not admit the request pursuant to Art. 13(2) RPBA 2020.

In T 1569/17 the board held that, according to the case law, filing a set of claims differing from a previously filed request in that claims had been deleted could be regarded as not amending the appeal case within the meaning of Art. 13(2) RPBA 2020 if it did not alter the factual situation or entail revisiting all the matters at issue (T 1480/16, T 995/18). However, it observed that, in the case at issue in T 1480/16, the patentability of the device and method claims had already been examined separately and decided differently at first instance. What was more, the parties to the appeal in that case had submitted distinct arguments for the device and method claims and so made **thorough and nuanced cases on the two claim categories**. The case in hand here was different. Auxiliary request 9 filed at the end of the oral proceedings was the first request on appeal that did not include a product claim (whereas all method claims had been deleted in the higher-ranking auxiliary request 8).

For further decisions where deletions were considered to be amendments, but the requests were admitted, see e.g. T 1597/16 (limitation to two of three embodiments of a feature, no change in factual or legal issues in dispute, discretion nevertheless exercised, admitted), T 682/16 (deletion of claims 48-53, no objection from opponent, admitted), T 1224/15 (deletion of dependent claim not giving rise to any new objection, reference to

T.1480/16, discretion exercised under Art. 13(2) RPBA 2020, request admitted), T.1439/16 (deletion of claim 1 from auxiliary request 6 was considered an amendment but not one that introduced new subject-matter to be discussed, admitted), T.853/17 (only product claims defined in granted patent retained, admitted), T.306/18 (auxiliary request 1" limited to sole method claim of granted patent, admitted), T.713/14 (auxiliary request I: deletions of alternatives from independent claims, admitted; auxiliary request II: restriction of the subject-matter to embodiments of dependent claims, admitted), T.2091/18 (deletion of all device claims, main request admitted); cf. also the decisions, concerning somewhat different circumstances, in T.2787/17 (limitation to specific embodiments, one of which, however, had previously been disclosed only in the description) and T.2222/15 (auxiliary requests 2.2 and 2.3, deletion of the method claims, submission without supporting reasons).

e) New request combining subject-matter of previously filed claims

In ex parte case T.1775/18, the appellant argued that the introduction in an independent claim of a feature taken from a dependent claim was not an amendment of its case which, under Art. 13(2) RPBA 2020, required exceptional circumstances justified with cogent reasons. Such an amendment could not come as a surprise, since dependent claims were meant to define fallback positions. Moreover, the dependent claim concerned formed part of the decision under appeal, as it had been discussed by the examining division in an obiter dictum. The board did not agree. While it was true that dependent claims defined fallback positions for certain purposes, in EPO proceedings they could not be equated with auxiliary requests. Art. 113(2) EPC required the EPO to decide on an application in the text submitted to it, or agreed, by the applicant. According to the board, this meant that it was the applicant's responsibility to file an (amended) set of application documents that fully met the requirements of the EPC. For the sake of procedural efficiency, the RPBA set limits on when such amendments could still be filed in appeal proceedings.

T.312/19 concerned a new auxiliary request (6bis), filed during the oral proceedings, which combined subject-matter from two auxiliary requests. The board rejected the respondent's (patent proprietor's) arguments that the new request did not add anything new to the discussion, that the subject-matter under discussion already formed part of the respondent's appeal case, even if not included in one and the same request, and that, by not submitting all possible permutations of the independent claims, it had avoided the filing of an overwhelming number of requests. The board, however, held that the new auxiliary request was a change in the respondent's appeal case since it had never been part of the appeal proceedings until the oral proceedings. The board also pointed out that the new request combined two independent claims of two different requests and thus constituted a new contingency position of the respondent.

f) Request paraphrased and not set out in full

In T.2154/19 the appellant (patent proprietor) argued that auxiliary requests 2 and 3 filed at the oral proceedings did not amend its appeal case because they had already been filed in a passage in its grounds of appeal. However, the claim sets had merely been paraphrased there; they had not been set out in full. A sufficiently precise particular

combination of claims selected from the auxiliary requests dealt with in the contested decision could not be identified from that passage. The board therefore considered that auxiliary requests 2 and 3 amended the appeal case.

g) Request considered in decision under appeal and clearly specified in grounds of appeal

In T 276/17 the board had to decide whether to admit auxiliary request 2 on appeal. It had not been filed with either the notice of appeal or the grounds of appeal. The appellant had, however, referred in its grounds of appeal to "the auxiliary request" and, since no new claim requests had been filed, there was, in the board's view, no doubt that this reference could relate only to the single auxiliary request dealt with in the decision under appeal, and so that request had been clearly identified. In addition, that auxiliary request had already been admitted, and its merits decided, by the opposition division. The board considered that the identical auxiliary request 2 filed on appeal was therefore part of the appellant's case under Art. 12(3)(a) RPBA 2020 and that there was no legal basis for excluding it from the appeal proceedings.

h) Resubmission of withdrawn requests

Since a withdrawn request ceases to be at issue in the proceedings, its admission (consideration) if it is resubmitted at a later stage is subject to the same procedural requirements as apply to a brand new one (T 2692/18, referring to T 1695/14 and T 1421/20). In the case to be decided in T 2692/18, this meant that Art. 13(2) RPBA 2020 had to be applied because the request originally filed in response to the reply had been replaced by other requests following the communication under Art. 15(1) RPBA 2020 and had not then been resubmitted until the oral proceedings.

In T 1421/20 auxiliary requests 1 to 5 had been considered in the decision under appeal, but the board noted that they had been replaced (i.e. withdrawn) at the beginning of the appeal and were thus not part of the appellant's (applicant's) appeal case. The board thus regarded their reintroduction (after notification of the summons to oral proceedings) as an amendment to the appellant's case, the admission of which was subject to its discretion (Art. 13 RPBA 2020). See also T 798/18.

i) Requests belatedly substantiated

In T 319/18 the board recalled that Art. 12(3) RPBA 2020, analogously to Art. 12(2) RPBA 2007 (which was applicable when the submission at issue was filed), required that the parties to appeal proceedings set out their complete case in their initial submissions (statement of grounds of appeal and reply thereto). The board held, with reference to T 933/09 and T 1533/13, that with respect to the filing of a new set of claims, it was necessary to explicitly state why the amendments overcame the objections on which the decision under appeal was based and/or which were raised by the opponent. The board continued that, unless the purpose of the amendments in respect of overcoming the prevailing objections was self-explanatory, if reasons explaining why the new claims

overcome the outstanding objections were filed after the statement of grounds of appeal or the reply, these reasons constituted an amendment to the party's appeal case. In the case in hand, the amendments were not self-explanatory and the board stressed that, therefore, in line with established jurisprudence of the boards, the requests became effective only at the date on which they were substantiated (here in a letter in response to the preliminary opinion of the board). The request was not admitted (Art. 13(2) RPBA 2020).

j) Requests reordered

In T.716/17, the patent proprietors substantially reordered their pending requests several times during the oral proceedings. This resulted in a repeated change in the subject-matter to be discussed, since the auxiliary requests selected by the patent proprietors related to a variety of different and diverging attempts to find allowable subject-matter. The board considered that the reordering of pending requests carried out by the patent proprietors amounted to an amendment of the case, which needed to be justified according to Art. 13(2) RPBA 2020. This requirement was not met.

k) Fleshing out objections not adequately substantiated in the grounds of appeal or reply

In T.2253/16 the board found that the appellant's (opponent's) submissions in its grounds of appeal in support of its contention that D4 was novelty-destroying were not adequately substantiated and therefore could not be considered (Art. 12(3) RPBA 2020 and Art. 12(4) RPBA 2007, which was applicable under Art. 25(2) RPBA 2020). In particular, there was no analysis of D4 showing where the appellant considered which claim features to have been disclosed. At the oral proceedings, the appellant wanted to present the case on D4 it had made in the opposition proceedings but not included in its grounds of appeal. However, the board considered that fleshing out its incomplete appeal case in this way would amount to amending it. Since the appellant had not cited any exceptional circumstances justifying such an amendment, the submissions were disregarded under Art. 13(2) RPBA 2020.

In T.1217/17 the board decided to disregard several lines of argument merely mentioned but not adequately substantiated in the reply to the appeal. At the oral proceedings, the respondent (opponent) announced that it would be "expanding" on these arguments. It contended that this did not amount to amending its case within the meaning of Art. 13(1) RPBA 2020; it was instead elaborating on arguments already made in its reply and based on citations already produced, which was admissible at any stage of the appeal proceedings. The board found that, for some of these lines of argument, no supporting case had been made in the reply, which merely referred to arguments put forward in the opposition proceedings, so any submissions at the oral proceedings would have to be regarded as forming an entirely new appeal case. As to the other lines of argument, the board observed that the respondent's reply did not set out a logical chain of arguments as regards lack of inventive step, so any submissions on this point too would amount to a change in the substance of its appeal case. The announced submissions were not merely new arguments but also new facts, e.g. the features analysis missing from the reply and